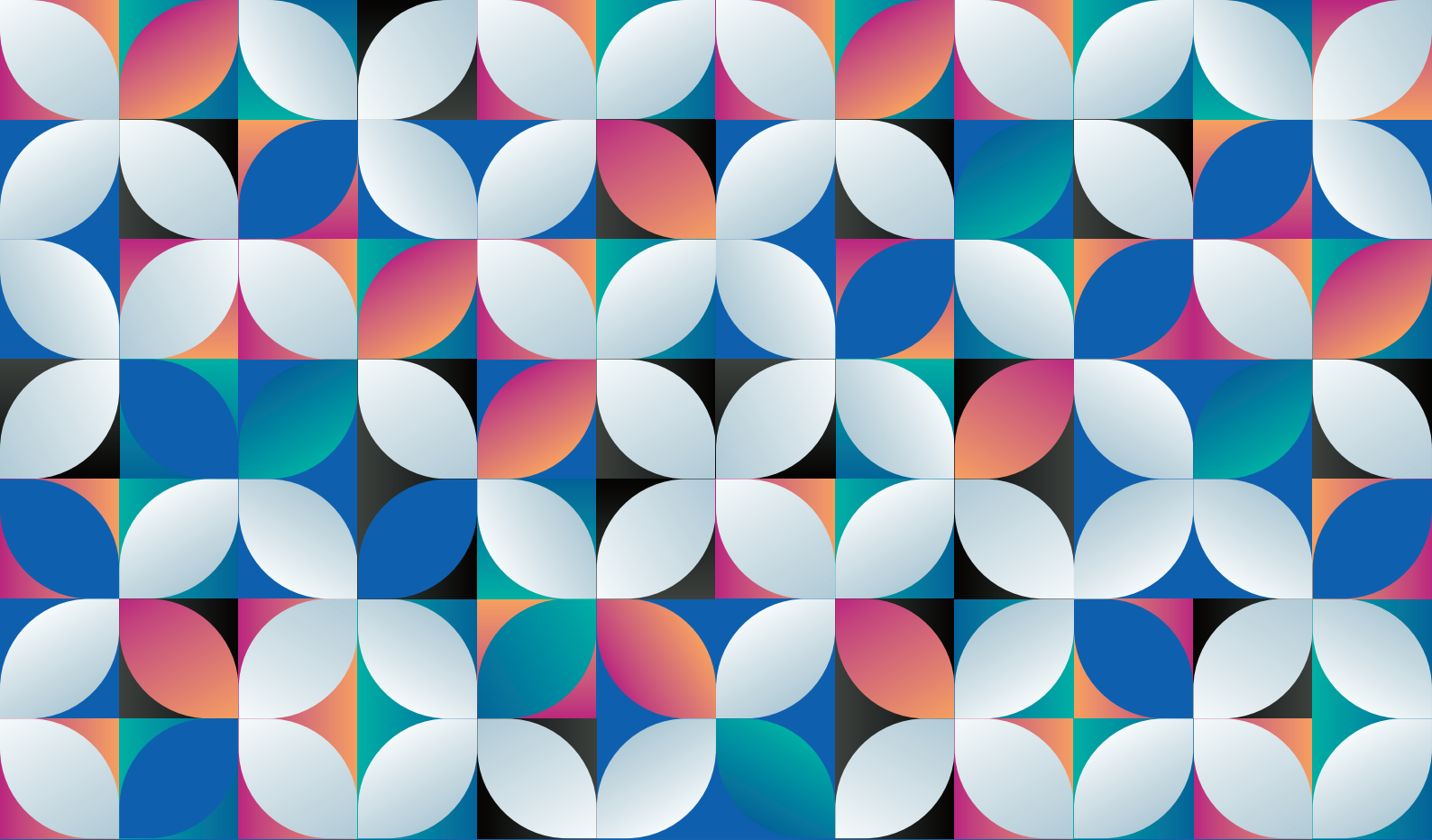




National Position of the Republic of Korea on the Application of International Law in Cyberspace

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1. Background to the Discussion

The Republic of Korea has closely followed and actively participated in the international community's evolving discourse on the application of international law in cyberspace, as exemplified by the work of the United Nations Group of Governmental Experts (GGE) on Developments in the Field of Information and Telecommunications in the Context of International Security from 2004 until 2021, and the ongoing discussions under the United Nations Open-Ended Working Group (OEWG) on Security of and in the Use of Information and Communications Technologies since 2021.

The Republic of Korea acknowledges that the traditional physical domains of land, sea, and air have expanded into cyberspace as a result of advancements in information and communication technologies (ICTs) and emerging technologies. This new domain plays a vital role in the prosperity and security of humanity and is intrinsically interconnected with existing physical domains.

Cyberspace is characterized by transboundary reach, anonymity, and hyper-connectivity, enabling a wide range of actors, including governments, businesses, individuals, and civil society, to engage in cyber activities without clear boundaries. This has led to the emergence of complex relationships and potential conflicts among various actors. As such, the process of developing international norms in this domain should be inclusive, involving not only States but also academia, civil society, and the private sector.

The Republic of Korea holds the view that the United Nations Charter, together with other generally accepted international norms and customary international law, applies equally to activities in cyberspace. While many States have articulated their respective views on the applicability of international law to cyberspace, the Republic of Korea has also undertaken an extensive internal study and review on this issue. Based on these efforts, the Republic of Korea now wishes to present its position on the application of international law to cyberspace and to share it with the international community.

Recognizing that cyberspace will continue to evolve with technological progress and changes in the international security environment, this position paper is not intended to be definitive or immutable. Rather, the Republic of Korea's understanding of, and approach to, the application of international law in cyberspace may continue to expand in line with future developments in technology and multilateral dialogue.

2. State Sovereignty

Every State is independent in its international relations and possesses the supreme authority within its territory. Sovereignty must be equally and mutually respected among States, and such sovereignty is equally recognized in cyberspace. The Republic of Korea considers that the principle of sovereign equality, and the principles derived from it, namely, the peaceful settlement of disputes, the prohibition of the threat or use of force, and the principle of non-intervention in domestic affairs, are all applicable to State activities in cyberspace.

Based on the principle of territorial jurisdiction, a State exercises authority over cyber infrastructure located within its territory, over individuals engaging in cyber activities from within its borders, and over the cyber activities themselves.¹

Activities in cyberspace may originate from virtually any location on the globe and, due to their ability to cross borders rapidly and with relative ease, are often difficult to trace. As such, it is not always straightforward to define the limits of a State's jurisdiction over cyber activities. In this context, international cooperation is essential to ensuring a safe and open cyberspace. The Republic of Korea, as a responsible member of the international community, is committed to contributing to this collective effort.

As a logical consequence of the principle of sovereign equality, no State may intervene in the domestic affairs of another. This principle is explicitly codified in Article 2(7) of the UN Charter and has been affirmed in international jurisprudence.² This principle applies equally in cyberspace.

¹ Cyberspace is not a virtual realm existing independently of physical components. Rather, it is constructed upon concrete physical infrastructure, such as computer network systems, fiber-optic cables, and satellite systems, thereby making cyberspace subject to territorial jurisdiction and sovereign authority. See also 2015 GGE Report, para. 28(a): "States have jurisdiction over the ICT infrastructure located within their territory."

² Military and Paramilitary Activities in and Against Nicaragua (Nicaragua v. United States of America)

3. Prohibition on the Use of Force and the Right of Self-Defense

3.1 Principle of the Prohibition on the Use of Force

Article 2(4) of the Charter of the United Nations provides that all Members shall refrain in their international relations from the threat or use of force against the territorial integrity or political independence of any State, or in any other manner inconsistent with the purposes of the United Nations. This principle has also been firmly established under customary international law and is applicable at all times, except in narrowly defined circumstances such as the exercise of the right of self-defense under Article 51 of the UN Charter or enforcement measures authorized by the Security Council under Chapter VII of the Charter.

The Republic of Korea affirms that this principle prohibiting the use of force under international law applies equally to activities conducted in cyberspace.³

3.2 Assessment of Cyber Activities

Whether a cyber activity constitutes a ‘use of force’ must be assessed based on a holistic consideration of its consequences, nature, the identity of the actor, and the target. If a certain cyber activity results in physical effects that are equivalent to those caused by a traditional use of force under international law, it may, *prima facie*, be regarded as a use of force.

The concept of ‘use of force’ encompasses the narrower category of ‘armed attack.’ The International Court of Justice (ICJ) has clarified that not every use of force qualifies as an armed attack; only those uses of force that reach a certain threshold of gravity in terms of scale and effects may be considered armed attacks.⁴ This interpretation has been affirmed through multiple international judicial decisions, respected academic commentaries, and consistent State practices.

(Merits) [1986] ICJ Rep 14, para. 205.

³ See 2021 GGE Report, para. 70: “In this respect, the Group reaffirmed the commitments of States to the following principles of the Charter and other international law ... refraining in their international relations from the threat or use of force against the territorial integrity or political independence of any State, ...”

⁴ Military and Paramilitary Activities in and Against Nicaragua (Nicaragua v. United States of America) (Merits) [1986] ICJ Rep 14, paras. 191, 195; Oil Platforms (Islamic Republic of Iran v. United States of America) (Merits) [2003] ICJ Rep 161, paras. 51, 64.

3.3 Peaceful Settlement of Disputes

In accordance with Article 2(3) of the Charter of the United Nations, all States shall settle their international disputes by peaceful means. This principle of peaceful dispute settlement applies equally in the context of cyberspace.

Accordingly, when a dispute arises from cyber activities, the parties concerned should seek to resolve the issue through peaceful means appropriate to the circumstances and nature of the dispute, and strive to reach a mutually acceptable resolution.

3.4 Self-Defense

Under international law, when an armed attack occurs, the injured State has the right to exercise self-defense in accordance with Article 51 of the UN Charter and relevant rules of customary international law.

The Republic of Korea is of the view that where the consequences of a certain cyber activity, in terms of its scale and effects, amount to an armed attack, the injured State may lawfully exercise its right of self-defense. The exercise of this right must adhere to the principles of necessity and proportionality, as required under international law.

Where a cyber activity constitutes a use of force but does not reach the threshold of an armed attack, the injured State may take countermeasures that do not involve the use of force, consistent with the level of response permitted under general international law.

4. Responsibility of States

4.1 Application of the Law of State Responsibility

A State bears responsibility for its internationally wrongful acts. The customary nature of the law of State responsibility has been affirmed in numerous international judicial decisions, and is substantially reflected in the Draft Articles on Responsibility of States for Internationally Wrongful Acts (ARSIWA), adopted by the International Law Commission (ILC) in 2001.⁵

⁵ Draft Articles on Responsibility of States for Internationally Wrongful Acts, adopted by the International Law

This framework applies equally to cyber activities. That is, a State incurs international legal responsibility for cyber activities where:

- (a) the activity is attributable to the State under international law; and
- (b) the activity constitutes a breach of an international obligation binding upon that State.

4.2 Attribution of Activity

When a cyber activity that amounts to an internationally wrongful act occurs, the injured State must assess whether the act is attributable to a specific State. This assessment should be based on available evidence and involve a comprehensive analysis of the technical and legal dimensions of the activity, as well as the intent behind it.

More precisely, the determination of attribution involves both technical and legal evaluations. The technical and factual analysis concerns identifying the origin of the cyber activity—such as the devices and networks involved—and the individuals or entities who executed it. Cooperation with Information and Communication Technology (ICT) experts is often essential in this process.

The legal assessment of attribution focuses on whether the cyber activity was carried out under the instructions, direction, or control of a State, and whether such activity can therefore be legally attributed to that State.

Cyber activities conducted by organs of the State, or by officials acting in their official capacity, are attributable to the State.⁶ Likewise, cyber activities carried out by non-State actors may also be attributable to a State if such actors conducted on the instructions of, or under the direction or control of, that State.⁷

However, due to the inherent anonymity, simultaneity, and transboundary nature of cyberspace, identifying and tracing the actors responsible for cyber activities can be particularly challenging. Accordingly, close cooperation among States—

Commission at its 53rd session in 2001.

⁶ See ARSIWA, Articles 4 and 5.

⁷ See ARSIWA, Article 8.

including timely information sharing—is essential to improving both the accuracy and timeliness of attribution assessments.

Furthermore, when a State subsequently acknowledges and adopts the activity of a non-State actor as its own, such activity shall also be attributable to that State.

There is no international legal obligation for a State to publicly disclose the information on which it bases its decision to attribute malicious cyber activities to another State. The injured State retains the discretion to determine whether or not to make such information public in connection with the harm it has suffered.

4.3 Countermeasures

Under general international law, lawful countermeasures are permissible in response to internationally wrongful acts, and this principle applies equally in cyberspace. Given the anonymity and transboundary nature of cyberspace, which often places the injured State at a structural disadvantage, the necessity of countermeasures may indeed be recognized as a means of ensuring effective protection for the injured State.

However, countermeasures must be taken in accordance with specific conditions. They must be proportionate to the injury suffered, taking into account the gravity of the internationally wrongful acts and the seriousness of the rights infringed. Countermeasures must be temporary in nature and shall remain in effect only until the responsible State ceases its wrongful activity. In determining the form of such measures, the injured State shall also consider the feasible means available to it.

The purpose of countermeasures is to induce the responsible State to comply with its international obligations. As such, they are peaceful in nature. To deny the right of an injured State to take countermeasures would risk depriving it of an effective and lawful means to respond to violations of international law.

Countermeasures need not be of the same character as the original internationally wrongful acts. In response to a breach of international law committed through cyber activities, the injured State may adopt countermeasures involving either cyber means or non-cyber means, depending on the circumstances.

4.4 The Scope and Content of the Duty of Due Diligence

States have an obligation under international law to exercise due diligence to ensure that activities conducted within their jurisdiction do not cause harm to other States or to areas beyond national jurisdiction. This duty has been affirmed in various international judicial decisions and is widely recognized as a foundational principle of general international law.⁸

When applied in the context of cyberspace, this principle requires States to take reasonable steps to prevent harm to other States resulting from cyber activities originating within their territory. In particular, States should not knowingly allow their territory to be used for internationally wrongful acts carried out through the use of information and communications technologies (ICTs), and they must not permit such acts when they become aware of them.⁹

Given that cyber activities frequently transcend the physical boundaries of time and space, it is often extremely difficult for an injured State to promptly identify the actors responsible for malicious cyber activities. In such circumstances, the cooperation of the State in which such activities originate, or through which they transit, is essential to enable the injured State to take appropriate action, such as identifying the actor and halting the activities.

Furthermore, the progressive development of international norms and mechanisms aimed at safeguarding the rights of injured States is necessary. While the precise scope of the duty of due diligence in the cyber context continues to evolve, at a minimum, States from which or through which malicious cyber activities are conducted should cooperate with the injured State in its efforts to respond.

Specifically, when an injured State formally notifies another State that malicious cyber activity is originating from or transiting through its territory, the notified

⁸ See *Legality of the Threat or Use of Nuclear Weapons* (Advisory Opinion, ICJ, 1996); *Responsibilities and Obligations of States Sponsoring Persons and Entities with Respect to Activities in the Area* (ITLOS Advisory Opinion, 2011); *Request for an Advisory Opinion Submitted by the Sub-Regional Fisheries Commission* (ITLOS, 2015).

⁹ See 2015 GGE Report, para. 13(c): “States should not knowingly allow their territory to be used for internationally wrongful acts using ICTs.” See also 2021 GGE Report, para. 71(g): “... States must not use proxies to commit internationally wrongful acts using ICTs, and should seek to ensure that their territory is not used by non-State actors to commit such acts ...”.

State should be deemed to have knowledge of such activity. Upon receiving such notification, the State should conduct without delay to cooperate and take necessary measures—consistent with its domestic and international legal obligations—to prevent or terminate the wrongful activity.

5. International Human Rights Law

Respect for human rights constitutes a well-established obligation under international human rights law, and this obligation applies equally in the context of cyberspace.¹⁰

The Republic of Korea affirms that international human rights law applies online in the same manner as it does offline. Individuals are entitled to enjoy the same human rights in relation to cyber activities as they do in any other domain.

Fundamental rights—including the right to privacy, freedom of expression, access to information, protection against discrimination, and the prevention of hate speech—must be protected and upheld in cyberspace for all individuals, including women and socially vulnerable groups.

6. International Humanitarian Law

International humanitarian law (IHL) applies to cyber activities conducted in the context of armed conflict. Clarifying the applicable legal framework in such situations contributes to the deterrence of the misuse of information and communication technologies (ICTs) in armed hostilities.

IHL governs activity during armed conflict and has, to a significant extent, attained the status of customary international law.¹¹ Under IHL, the right of

¹⁰ See 2015 GGE Report, para. 13(e): “States, in ensuring the secure use of ICTs, should respect Human Rights Council resolutions 20/8 and 26/13 on the promotion, protection and enjoyment of human rights on the Internet, as well as General Assembly resolutions 68/167 and 69/166 on the right to privacy in the digital age, to guarantee full respect for human rights, including the right to freedom of expression.” See also para. 28(b): “In their use of ICTs, States must observe, among other principles of international law, ... States must comply with their obligations under international law to respect and protect human rights and fundamental freedoms.”

¹¹ Legality of the Threat or Use of Nuclear Weapons (ICJ Advisory Opinion, 1996). The Court reaffirmed the fundamental principles that underpin international humanitarian law, including the distinction between combatants and non-combatants, the prohibition of indiscriminate weapons, the prohibition of causing unnecessary suffering, and the principle that States do not have unlimited freedom in the means and methods of

belligerents to choose methods and means of warfare is not unlimited. Inherently indiscriminate weapons—those incapable of distinguishing between military objectives and civilians or civilian objects—are prohibited. Similarly, the use of weapons, projectiles, materials, or methods of warfare that are of a nature to cause superfluous injury or unnecessary suffering is also prohibited.

Moreover, even if a specific weapon system is deemed lawful under international humanitarian law,¹² its actual use and manner of deployment must comply with the fundamental principles of IHL, including the principles of distinction, proportionality, and precaution. These core principles—humanity, necessity, proportionality, and distinction—have also been recognized as applicable to cyberspace in the 2015 report of the United Nations Group of Governmental Experts (UN GGE).¹³

warfare.

¹² See Article 36 of the 1977 Additional Protocol I to the 1949 Geneva Conventions.

¹³ 2015 GGE Report, para. 28(d): “The Group notes the established international principles, including, where applicable, the principles of humanity, necessity, proportionality, and distinction.”